

Narendra vs Smt. Archna on 4 December, 2024

Author: Gurpal Singh Ahluwalia

Bench: Gurpal Singh Ahluwalia

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
FA No. 2037 of 2023
(NARENDRA Vs SMT. ARCHNA)

Dated : 04-12-2024

Shri Somnath Seth - Advocate for appellant.

Shri Jitendra Singh Rathore- Advocate for respondent.

Record of the court below has been received.

Heard on the question of admission.

Appeal, being arguable, is admitted for final hearing.

Since respondent is already represented by her counsel, therefore, there is no need to issue fresh notice.

Also heard on I.A. No.6809/2023, an application for grant of maintenance pendente lite under Section 24 of Hindu Marriage Act.

It is submitted by counsel for respondent that respondent is residing in her parental house with her minor son Mayank Dohre and daughter Vaishnavi Dohre who are students of Class 10 and 8 respectively. Respondent has no source of income and she is also required to bear additional expenses of her children like school fee, books, dress, diet etc. which are being incurred by father of respondent. Appellant is earning Rs.80,000/- per month. Accordingly, it was prayed that an amount of Rs.40,000/- per month may be awarded under Section 24 of Hindu Marriage Act.

Appellant has filed his reply. Appellant was also present in Court. It was submitted by appellant that his take-home salary is Rs.60,000/- per 2 FA-2037-2023 month. When this Court expressed its view that an order under Section 24 of Hindu Marriage Act would be passed against appellant, then appellant submitted that he is ready to keep his wife and his children.

Respondent was also present in Court.

It is not out of place to mention here that by order dated 30.07.2024, a direction was given for mediation and report of Mediator has been received which is to the effect that mediation has failed. Thus, it appears that willingness shown by appellant to keep his wife and children with him may not be bona fide and may be in order to avoid the order under Section 24 of Hindu Marriage Act.

Be that whatever it may be.

If the appellant has changed his view and has decided to keep his wife and children with him then for the time being this Court has no reason to disbelieve the intentions of appellant. However, in view of the fact that earlier appellant had not agreed for reconciliation and reconciliation proceedings had failed, therefore, in all fairness, this Court thinks it appropriate to protect the interest of respondent and her children also and accordingly application under Section 24 of Hindu Marriage Act is taken up for consideration.

Elder son of appellant is a student of Class 10 and younger daughter of appellant is a student of Class 8. Both of them are being looked after by respondent. According to appellant himself, his monthly take home salary is Rs.60,000/-. Therefore, this Court is of the considered opinion that looking to the price index, cost of daily needs coupled with the fact that one of the 3 FA-2037-2023 children of appellant is a student of Class 10 and another child is a student of Class 8 who also require special diet, books, uniform etc, it is directed that appellant shall pay Rs.30,000/- per month to respondent by way of maintenance pendente lite under Section 24 of Hindu Marriage Act. However, appellant has also agreed to keep his wife and his children with him. Application under Section 24 of Hindu Marriage Act was filed on 28.11.2023. Therefore, it is directed that appellant shall pay maintenance pendente lite from the date of application. Accordingly, he is directed to deposit an amount of Rs.3,90,000/- by way of maintenance pendente lite from the date of application till date in the bank account of respondent.

In case if appellant takes his wife and children with him then order of payment of maintenance pendente lite would remain in abeyance. In case if appellant and respondent again gets separated for any reason then order of maintenance pendente lite would automatically stand revived and appellant will be liable to pay Rs.30,000/- per month from the date of separation till final disposal of this appeal.

With aforesaid observation, I.A. No.6809/2023 is finally disposed of.

(G. S. AHLUWALIA)
JUDGE

(RAJENDRA KU
JUDGE

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